

Procedure No.: PD/00002/2022

SUBJECT: Appeal for Reinstatement No. EXP202104512

RESOLUTION OF APPEAL FOR REINSTATEMENT

Examined the appeal for reinstatement filed by B.B.B. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated April 25, 2022, and based on the following

FACTS

FIRST: On April 25, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in file PD/00002/2022, in which it was agreed to dismiss the claim for Protection of Rights filed by Mr. B.B.B. against GOOGLE LLC.

SECOND: The resolution now being appealed was duly notified to Mr. B.B.B. on April 25, 2022, as evidenced by the notification receipt.

THIRD: The appellant submitted an appeal for reinstatement on May 17, 2022, which was received by this Agency on the same day, in which he states, in summary, that the claim whose resolution is now being appealed raised two issues: on one hand, the exercise of the right to erasure regarding the processing of personal data carried out by Google, and on the other, an international transfer of data without a legal basis to legitimize it, and that the AEPD resolved to dismiss the claim without addressing the substance of the issues raised, considering that the affected party is not in the European Union, invoking Article 3.2.a) of the GDPR.

"That this party considers that such a pronouncement is not in accordance with the law since the affected party is indeed in the European Union, specifically in Spain, without prejudice to the professional ties he also has in the United States. For the purpose of proving his presence in Spain, the following documentation is attached:

- 1.- Notarial act of presence dated May 16, 2022, in which the notary (...) certifies that Mr. B.B.B. is physically present before him.
- 2.- Certificate of the population register, issued on May 16, 2022, where he is registered in Pamplona since 1996.
- 3.- Certificate, dated May 11, 2022, of the existence in his name of various insurance policies contracted in Spain.
- 4.- Medical report from the health center where he is registered as a temporary caregiver for his mother, Mrs. A.A.A.
- 5.- Photograph taken on May 16, 2022, where the affected party can be seen holding a paper copy of the Diario de Navarra purchased physically at a kiosk on that same May 16, 2022.
- 6.- Photocopy of the ID card, which shows his address in Pamplona."

LEGAL GROUNDS

I

The Presidency of the Spanish Agency for Data Protection is competent to resolve the present appeal in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP).

II

Due to reasons related to the functioning of the administrative body, therefore not attributable to the appellant, as of the date of this document, the mandatory pronouncement of this Agency regarding the request of the interested party has not been issued.

In accordance with the provisions of Article 24 of the LPACAP, the effect of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP. Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reinstatement filed.

III

Based on these norms and considering the facts established as proven, it was determined that:

“SIXTH: In the present case, it has been established that the claimant exercised the right to erasure of his data before the respondent, ‘Google is requested that the de-indexing be applied not only in the European sphere but also to searches carried out in and from the United States of America in the generic version of the search engine (google.com) as well as any other European regional version.’ Google responded that they were working to remove the URLs from Google search results related to queries concerning the name of their client in the countries where European data protection legislation applies.

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During the processing of the present procedure, Google has indicated, in summary, that the imposition of extraterritorial blocking measures violates, among other principles of international law, the principle of proportionality and severely compromises the defense of public freedoms in various territories. It states that “The interpretation of the Judgment of the CJEU (Grand Chamber), of September 24, 2019, issued in Case C-507/17, made otherwise would thus be incompatible with the principles of sovereignty and non-interference that govern public international law.

It informs that the blocking to which Google agreed has effects both for searches conducted in Spain and for searches conducted in other European versions of the search engine. These blocking measures are carried out in accordance with the Judgment of the Court of Justice of the EU of May 13, 2014. According to the ruling of the National Court, such limitation seems logical because otherwise it would constitute an interference in the sovereignty of other States not integrated into the EU, violating a fundamental principle of international law.

From the analysis of the documentation provided during the procedure, it does not seem that the claiming party is located in the European Union. To justify its connection with the Union, its representative states that “I graduated in Law from Emory University, although I also previously graduated in Law in Spain, and I currently work in the Court of Chancery of Delaware, serving as legal counsel to the Vice Chancellor of that Court.” And it provides a copy of an interview that a Spanish media outlet dedicated to him.

Consequently, taking into account the provisions of Article 3.2. a) of the GDPR, “(...) a) the offering of goods or services to such interested parties in the Union, regardless of whether payment is required from them, or (...)” it is appropriate to dismiss the claim made.”

IV

The appellant argues in this appeal for reconsideration that the claim presented to this Agency raised two issues, on one hand, the exercise of the right to erasure regarding the processing of personal data carried out by Google and, on the other, an international transfer of data without a legal basis to legitimize it, resulting in the dismissal of said claim without addressing the substance of the issues raised.

Regarding the first of the arguments, the appellant states that he is indeed located in the European Union, specifically in Spain, without prejudice to the professional ties he has in the United States, and provides various documentation to justify his presence in Spain.

However, in the claim that led to the resolution now being appealed, the interested party justified his request on the grounds that he has a stable job in the United States where he is developing personally and professionally, providing evidence to substantiate this circumstance.

In the same claim, he also states that on 09/03/2021, he submitted a request for de-indexing to GOOGLE LLC regarding two addresses.

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web, for searches based on his name and surname, and that in said request "it was indicated that the

affected person (the appellant) was residing in the United States."

Nor did the appellant argue that he resided in Spain in the allegations made during the hearing process granted to him during the procedure that led to the contested resolution.

Therefore, the request of the claimant was resolved according to the facts provided.

Regarding the second of the arguments on which this appeal for reconsideration is based, international data transfer, it must be clarified that, contrary to what is stated in the appeal filed, this argument was not raised in the complaint that motivates the proceedings, whose object was limited to the right of erasure formulated by the appellant before the entity GOOGLE LLC. The request contained in this complaint was expressed in the following terms:

"Requests

The protection of the Spanish Agency for Data Protection under the provisions of Article 77 of the General Data Protection Regulation and in accordance with the provisions of Articles 63 and following of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights, and expressly requests:

First.- That this complaint be admitted for processing and that the controversial issue of whether in this specific case the right to be forgotten already granted should also be extended to searches conducted from the United States on the generic search engine google.com be resolved."

Nor was any issue raised in the body of the complaint that related to a possible international data transfer. It was in the written allegations submitted by the appellant during the procedure when this issue was raised, requesting that GOOGLE LLC provide "the appropriate guarantees for carrying out a data transfer from Europe to the United States for the purpose of processing personal data of European citizens in the search engine's databases in order to display certain results in its search engine."

Thus, the Spanish Agency for Data Protection, having reviewed the complaint and resolved its admission for processing, in accordance with the provisions of Article 64 of the LOPDGDD, ordered the processing of a procedure for lack of attention to a request for the exercise of the right of erasure (section 1 of the aforementioned Article 64) and not a procedure to determine the possible existence of an infringement of the provisions of the GDPR (section 2 of Article 64).

It should be noted, ultimately, that it is not acceptable that new issues unrelated to the object of the proceedings arise during a formal administrative procedure.

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On the other hand, it is taken into account that the alleged international data transfer has not been justified since, as already indicated, the claimant was working and residing in the United States.

Moreover, the request for the removal of search results by the name and surname of the appellant subject to the procedure referred to the suppression of information published by a media outlet established in the United States, so that no international data transfer from the European Union to that country occurs.

Consequently, having examined the appeal for reconsideration submitted by the interested party, it does not provide new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution, so it is appropriate to agree to its dismissal.

Having seen the cited provisions and others of general application,

The Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by B.B.B. against the Resolution of this Spanish Agency for Data Protection issued on April 25, 2022, in file EXP202104512.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route, an administrative contentious appeal

may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of the aforementioned legal text.

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Art. 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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